

UPSC INDIAN POLITY

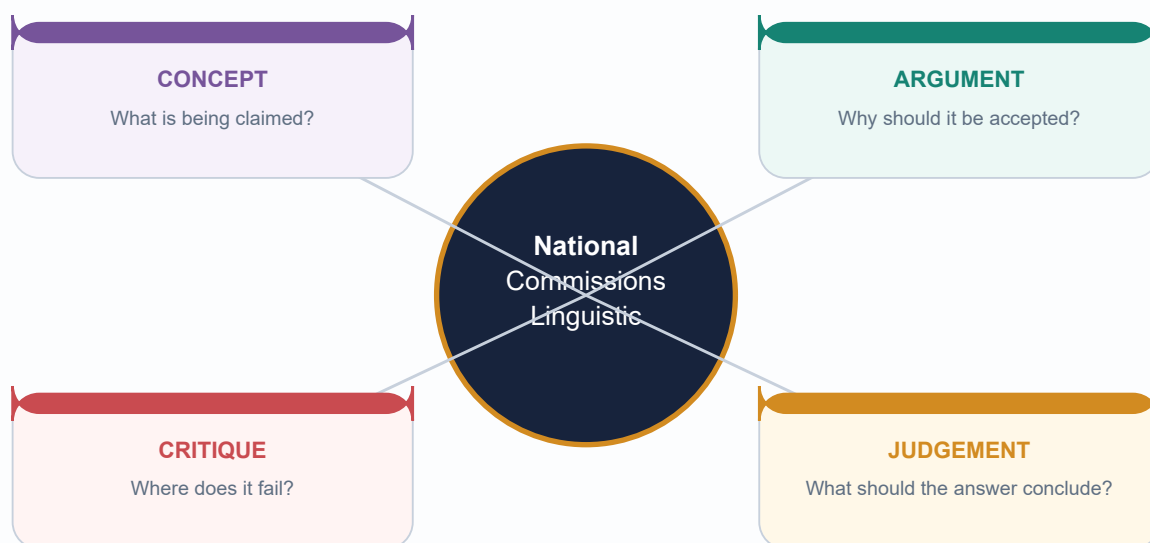
National Commissions (SC / ST / BC) + Linguistic Minorities (Articles 338, 338-A, 338-B, 350-B) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: National-Commissions-SC-ST-BC.md + 31_National-Commissions-SC-ST-BC.md

Learning cards: 16



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic (foundation) · **GS-II***Foundation learning layer: concepts → constitutional detail → UPSC application.*

STATIC THEORY

• greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive* → *advanced/31_National-Commissions-SC-ST-BC.md*.

MEMORY HOOK

greater than □ = from book · □ = current link · = mnemonic. *Deep dive* → *advanced/31_National-Commissions-SC-ST-BC.md*.

MUST-KNOW FACTS

1. greater than = from book · □ = current link · □ = mnemonic. *Deep dive* → *advanced/31_National-Commissions-SC-ST-BC.md*.

MAINS ANGLE

STUDY LINK

National Commissions (SC / ST / BC) +
Linguistic Minorities (Articles 338, 338-A,
338-B, 350-B) — ADVANCED / COMPLETE
→ Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Body	Article	Note
NCSC	338	Split from combined body in 2004
NCST	338-A	89th Amendment 2003
NCBC	338-B	102nd Amendment 2018 (was statutory since 1993)
Linguistic Minorities	350-B	7th Amendment 1956

MAINS ANGLE

STUDY LINK

National Commissions (SC / ST / BC) +
Linguistic Minorities (Articles 338, 338-A,
338-B, 350-B) — ADVANCED / COMPLETE
→ Snapshot

HIGH

Foundation · Core idea

GS-II Indian
Polity

INTRO & ORIGIN

Three **constitutional** commissions safeguard **SCs, STs and backward classes** — each with a **Chairperson + Vice-Chairperson + 3 members** appointed by the President, civil-court investigation powers, and an annual report to Parliament. The **Commissioner for Linguistic Minorities (Art 350-B)** protects language-minority safeguards.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea



Dimension 1 Three constitutional commissions safeguard SCs, STs and backward classes — each with a Chairperson + Vice-Chairperson + 3 members appointed by the Pre	Dimension 2 greater than □ Constitutional = SC/ST/BC (338, 338-A, 338-B). Statutory = Women, Minorities, Human Rights, Child
Dimension 3 greater than Rights.	Dimension 4 greater than □ NCBC became constitutional in 2018 (102nd Amdt) + Art 342-A (President specifies SEBCs).

STATIC THEORY

- greater than □ **Constitutional = SC/ST/BC (338, 338-A, 338-B)**. **Statutory = Women, Minorities, Human Rights, Child
- greater than Rights.**
- greater than □ NCBC became constitutional in **2018** (102nd Amdt) + **Art 342-A** (President specifies SEBCs).

MEMORY HOOK

greater than Constitutional = SC/ST/BC (338, 338-A, 338-B). Statutory = Women, Minorities, Human Rights, Child | greater than NCBC became constitutional in 2018 (102nd Amdt) + Art 342-A** (President specifies SEBCs).

MAINS ANGLE

STUDY LINK

National Commissions (SC / ST / BC) + Linguistic Minorities (Articles 338, 338-A, 338-B, 350-B) — **ADVANCED / COMPLETE** → Core idea

HIGH

Foundation · Must-Know Facts

GS-II Indian
Polity

INTRO & ORIGIN

- Each commission = **1 chair + 1 vice-chair + 3 members**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1 ☐ Each commission = 1 chair + 1 vice-chair + 3 members.	Dimension 2 ☐ NCSC & NCST split in 2004 (89th Amendment 2003).
Dimension 3 ☐ NCBC born from the Mandal/Indra Sawhney case (1992); 105th Amendment (2021) restored states' OBC lists.	Dimension 4 ☐ Commissioner for Linguistic Minorities — constitutional office under Art 350-B,

STATIC THEORY

- ☐ NCSC & NCST **split in 2004** (89th Amendment 2003).
- ☐ NCBC born from the **Mandal/Indra Sawhney case (1992)**; **105th Amendment (2021)** restored states' OBC lists.
- ☐ Commissioner for **Linguistic Minorities** — constitutional office under Art 350-B,
- administratively under the **Ministry of Minority Affairs**; headquarters has been in **New Delhi since 1 June 2015** (official Ministry status checked 21 Jul 2026).
- ☐ All commissions have **civil-court powers** while investigating.

MUST-KNOW FACTS

1. Each commission = **1 chair + 1 vice-chair + 3 members**.
2. NCSC & NCST **split in 2004** (89th Amendment 2003).
3. NCBC born from the **Mandal/Indra Sawhney case (1992)**; **105th Amendment (2021)** restored states' OBC lists.
4. Commissioner for **Linguistic Minorities** — constitutional office under Art 350-B,
5. All commissions have **civil-court powers** while investigating.

MAINS ANGLE

STUDY LINK

National Commissions (SC / ST / BC) + Linguistic Minorities (Articles 338, 338-A, 338-B, 350-B) — **ADVANCED / COMPLETE**
→ Must-Know Facts

HIGH

Foundation • ☐ Current linkGS-II Indian
Polity

NEWS TRIGGER

- ☐ **State of Punjab v. Davinder Singh (1 Aug 2024)**: the seven-judge Bench overruled *E.V. Chinnaiah* and permitted evidence-based SC sub-classification; a state must justify it with quantifiable, demonstrable data and cannot exclude the rest of the listed class. Creamy-layer exclusion for SC/STs appears in concurring opinions and earlier promotion jurisprudence; do not present it as the single unanimous ratio of the case.

INTRO & ORIGIN

Exam-ready treatment of ☐ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

National Commissions (SC / ST / BC) +
Linguistic Minorities (Articles 338, 338-A,
338-B, 350-B) — ADVANCED / COMPLETE
→ [Current link](#)

HIGH**Advanced • Core Foundation****GS-II** Indian
Polity**INTRO & ORIGIN**

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP**Core Foundation****Dimension 1**

greater than Subject: Polity · Tier: Advanced (exam depth) ·
GS Paper: GS-II

Dimension 2

greater than Grounded in: Indian Polity by M. Laxmikant, Ch.
47–50 (direct check of the local Sixth Revised Edition PDF) +
official updates.

Dimension 3

greater than □ = from source book · □□ = inference / case
law · □ = current affairs.

Dimension 4

greater than Companion:
basic/National-Commissions-SC-ST-BC.md.

STATIC THEORY

- greater than **Grounded in:** Indian Polity by M. Laxmikant, Ch. 47–50 (direct check of the local Sixth Revised Edition PDF) + official updates.
- greater than □ = from source book · □□ = inference / case law · □ = current affairs.
- greater than *Companion: basic/National-Commissions-SC-ST-BC.md.*

MUST-KNOW FACTS

1. greater than = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE**STUDY LINK**

National Commissions (SC / ST / BC) +
Linguistic Minorities (Articles 338, 338-A,
338-B, 350-B) — ADVANCED / COMPLETE
→ [Core Foundation](#)

HIGH

Advanced • THE BIG PICTURE □

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Body	Article	Status
□ National Commission for SCs (NCSC)	338	Constitutional
□ National Commission for STs (NCST)	338-A	Constitutional
□ National Commission for BCs (NCBC)	338-B	Constitutional (since 2018)
□ Commissioner for Linguistic Minorities	350-B	Constitutional office

MAINS ANGLE

STUDY LINK

National Commissions (SC / ST / BC) + Linguistic Minorities (Articles 338, 338-A, 338-B, 350-B) — ADVANCED / COMPLETE → THE BIG PICTURE □

HIGH

Advanced • THE BIG PICTURE □

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INTRO & ORIGIN

□ □ **Contrast (statutory bodies):** National Commission for **Women (1992)**, **Minorities (1993)**, **Human Rights (1993)**, **Protection of Child Rights (2007)** — all created by **Acts of Parliament**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

National Commissions (SC / ST / BC) + Linguistic Minorities (Articles 338, 338-A, 338-B, 350-B) — ADVANCED / COMPLETE → THE BIG PICTURE □

HIGH

Advanced • PART A — NCSC (Art 338) & NCST (Art 338-A) □ • Part 1

GS-II Indian
Polity

INTRO & ORIGIN

□ **Evolution:** originally a single **Special Officer** (Commissioner for SCs & STs). The **65th Amendment (1990)** created a multi-member **National Commission for SCs & STs**; the **89th Amendment (2003)** bifurcated it into the separate **NCSC (338)** and **NCST (338-A)** — NCST came into existence in **2004**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART A — NCSC (ART 338) & NCST (ART 338-A) □: RECALL MAP**PART A — NCSC (Art 338) & NCST (Art 338-A) □**

Dimension 1 □ Evolution: originally a single Special Officer (Commissioner for SCs & STs). The 65th Amendment (1990) created a multi-member National Commission fo	Dimension 2 □ Composition (each): Chairperson + Vice-Chairperson + 3 members, appointed by the President by
Dimension 3 warrant under hand & seal.	Dimension 4 □ Functions: investigate/monitor SC/ST safeguards; inquire into complaints; advise on & evaluate

STATIC THEORY

- □ **Composition (each): Chairperson + Vice-Chairperson + 3 members**, appointed by the **President** by
- warrant under hand & seal.
- □ **Functions:** investigate/monitor SC/ST safeguards; inquire into complaints; advise on & evaluate
- socio-economic development; **annual report to the President** (→ Parliament, with action-taken memo).
- □ **Civil-court powers** while investigating (summon persons, require documents, receive affidavit evidence,
- requisition public records).

MUST-KNOW FACTS

- 1. Evolution:** originally a single **Special Officer** (Commissioner for SCs & STs). The **65th Amendment (1990)** created a multi-member **National Commission for SCs & STs**; the **89th Amendment (2003)** bifurcated it into the separate **NCSC (338)** and **NCST (338-A)** — NCST came into existence in **2004**.
- 2. Composition (each): Chairperson + Vice-Chairperson + 3 members**, appointed by the **President** by
- 3. Functions:** investigate/monitor SC/ST safeguards; inquire into complaints; advise on & evaluate
- 4. Civil-court powers** while investigating (summon persons, require documents, receive affidavit evidence,

MAINS ANGLE**STUDY LINK**

National Commissions (SC / ST / BC) + Linguistic Minorities (Articles 338, 338-A, 338-B, 350-B) — **ADVANCED / COMPLETE** → **PART A — NCSC (Art 338) & NCST (Art 338-A) □**

HIGH**Advanced · PART A — NCSC (Art 338) & NCST (Art 338-A) □ · Part 2****GS-II** Indian Polity**INTRO & ORIGIN**

- **NCST extra duties** (tribal-specific): safeguards under forest/mining law, minor forest produce, PESA/FRA

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- linkages.

MUST-KNOW FACTS

1. **NCST extra duties** (tribal-specific): safeguards under forest/mining law, minor forest produce, PESA/FRA

MAINS ANGLE**STUDY LINK**

National Commissions (SC / ST / BC) + Linguistic Minorities (Articles 338, 338-A, 338-B, 350-B) — **ADVANCED / COMPLETE** → **PART A** — NCSC (Art 338) & NCST (Art 338-A) □

HIGH**Advanced · PART B — NCBC (Art 338-B) □□**

GS-II Indian Polity

INTRO & ORIGIN

□ **Origin:** the **Indra Sawhney / Mandal case (1992)** directed a permanent statutory body → **NCBC set up 1993** (NCBC Act 1993). The **102nd Amendment Act, 2018** gave it **constitutional status** (Art 338-B) — now **on par with NCSC/NCST** — and inserted **Art 342-A** (President specifies socially & educationally backward classes).

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART B — NCBC (ART 338-B) □□: RECALL MAP**PART B — NCBC (Art 338-B) □□**

Dimension 1 □ Origin: the Indra Sawhney / Mandal case (1992) directed a permanent statutory body → NCBC set up 1993 (NCBC Act 1993). The 102nd Amendment Act, 2018	Dimension 2 □ Composition: Chairperson + Vice-Chairperson + 3 members (President-appointed).
Dimension 3 □ Centre & states must consult the NCBC on all major policy matters affecting SEBCs.	Dimension 4 □□ 105th Amendment (2021): restored states'/UTs' power to make their own SEBC/OBC lists (after the SC's

STATIC THEORY

- □ **Composition: Chairperson + Vice-Chairperson + 3 members** (President-appointed).
- □ Centre & states **must consult** the NCBC on **all major policy matters** affecting SEBCs.
- □□ **105th Amendment (2021):** restored **states'/UTs' power** to make their **own SEBC/OBC lists** (after the SC's
- Maratha-reservation reading of the 102nd Amendment had centralised it).

MUST-KNOW FACTS

1. **Origin:** the **Indra Sawhney / Mandal case (1992)** directed a permanent statutory body → **NCBC set up 1993** (NCBC Act 1993). The **102nd Amendment Act, 2018** gave it **constitutional status** (Art 338-B) — now **on par with NCSC/NCST** — and inserted **Art 342-A** (President specifies socially & educationally backward classes).
2. **Composition:** **Chairperson + Vice-Chairperson + 3 members** (President-appointed).
3. Centre & states **must consult** the NCBC on **all major policy matters** affecting SEBCs.

MAINS ANGLE**STUDY LINK**

National Commissions (SC / ST / BC) +
Linguistic Minorities (Articles 338, 338-A,
338-B, 350-B) — **ADVANCED / COMPLETE**
→ **PART B** — NCBC (Art 338-B) □□

HIGH**Advanced · PART C — LINGUISTIC MINORITIES (Art 350-B) □ · Part 1**GS-II Indian
Polity**INTRO & ORIGIN**

- Inserted by the **7th Amendment (1956)** on the **States Reorganisation Commission (1953–55)** recommendation.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART C — LINGUISTIC MINORITIES (ART 350-B) □: RECALL MAP**PART C — LINGUISTIC MINORITIES (Art 350-B) □**

Dimension 1 □ Inserted by the 7th Amendment (1956) on the States Reorganisation Commission (1953–55) recommendation.	Dimension 2 □ Special Officer for Linguistic Minorities, appointed by the President → investigates safeguards for
Dimension 3 linguistic minorities; reports to the President → laid before Parliament & sent to states.	Dimension 4 □ Designated Commissioner for Linguistic Minorities (office created 1957), under the

STATIC THEORY

- □ **Special Officer for Linguistic Minorities**, appointed by the **President** → investigates safeguards for
- linguistic minorities; reports to the President → laid before Parliament & sent to states.
- □ Designated **Commissioner for Linguistic Minorities** (office created 1957), under the
- **Ministry of Minority Affairs**. Headquarters moved from Allahabad to **New Delhi on 1 June 2015** (official Ministry status checked 21 Jul 2026).
- □□ Constitution is **silent** on his qualifications, tenure, salary & removal.
- □ Related: **Art 350-A** (mother-tongue primary-education facilities); **Art 29 & 30** (cultural/educational

MUST-KNOW FACTS

1. Inserted by the **7th Amendment (1956)** on the **States Reorganisation Commission (1953–55)** recommendation.
2. **Special Officer for Linguistic Minorities**, appointed by the **President** → investigates safeguards for
3. Designated **Commissioner for Linguistic Minorities** (office created 1957), under the
4. Related: **Art 350-A** (mother-tongue primary-education facilities); **Art 29 & 30** (cultural/educational

MAINS ANGLE**STUDY LINK**

National Commissions (SC / ST / BC) + Linguistic Minorities (Articles 338, 338-A, 338-B, 350-B) — ADVANCED / COMPLETE → PART C — LINGUISTIC MINORITIES (Art 350-B) □

HIGH**Advanced · PART C — LINGUISTIC MINORITIES (Art 350-B) □ · Part 2**

GS-II Indian Polity

INTRO & ORIGIN

rights of minorities).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

National Commissions (SC / ST / BC) + Linguistic Minorities (Articles 338, 338-A, 338-B, 350-B) — ADVANCED / COMPLETE → PART C — LINGUISTIC MINORITIES (Art 350-B) □

HIGH**Advanced · UPSC Traps**

GS-II Indian Polity

INTRO & ORIGIN

constitutional).

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- their own lists (105th Amendment).

UPSC TRAPS

WRONG: NCBC is a statutory body

CORRECT: became **constitutional** via the **102nd Amendment (2018)**, Art 338-B.

WRONG: National Commissions for Women/Minorities are constitutional

CORRECT: they are **statutory** (only SC/ST/BC are

WRONG: NCSC & NCST were always separate

CORRECT: split only in **2004** (89th Amendment 2003).

WRONG: Each commission has a chairman + 5 members

CORRECT: **Chairperson + Vice-Chairperson + 3 members.**

WRONG: Commissioner for Linguistic Minorities is under the Home Ministry

CORRECT: **Ministry of Minority Affairs.**

WRONG: Art 350-B fixes the Commissioner's tenure

CORRECT: Constitution is **silent** on it.

WRONG: NCBC lists OBCs / prepares the central list

CORRECT: the **President** specifies SEBCs (Art 342-A); **states** keep

MAINS ANGLE**STUDY LINK**

National Commissions (SC / ST / BC) +
Linguistic Minorities (Articles 338, 338-A,
338-B, 350-B) — **ADVANCED / COMPLETE**
→ UPSC Traps

HIGH**Advanced • CA hooks**GS-II Indian
Polity**NEWS TRIGGER**

□ □ **Sub-classification of SCs — *State of Punjab v. Davinder Singh* (1 Aug 2024):** the seven-judge Bench overruled *E.V. Chinnaiah* and permits sub-classification supported by quantifiable, demonstrable data; it cannot exclude the balance of the Presidential-list class. Creamy-layer exclusion was discussed in concurring opinions and earlier promotion cases, not as one unanimous ratio of all seven judges. □ □ □ **Caste census** demand & the OBC/SEBC data gap — central to NCBC's mandate.

INTRO & ORIGIN

□ □ □ **Maratha / other quota agitations** and the **50% ceiling** (Indra Sawhney) debate.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• □ □ □ Demand to elevate the **Linguistic Minorities** office into a full statutory commission.

MAINS ANGLE**STUDY LINK**

National Commissions (SC / ST / BC) +
Linguistic Minorities (Articles 338, 338-A,
338-B, 350-B) — ADVANCED / COMPLETE
→ □ CA hooks

HIGH**Advanced · Mains angles****GS-II** Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"Constitutional status alone does not empower a commission." Examine w.r.t. NCSC/NCST/NCBC's advisory nature. Sub-classification of SCs and the creamy-layer debate — equality within reservation. Discuss (Davinder Singh 2024). The neglected Art 350-B: are linguistic minorities adequately protected in India?

STUDY LINK

National Commissions (SC / ST / BC) +
Linguistic Minorities (Articles 338, 338-A,
338-B, 350-B) — ADVANCED / COMPLETE
→ Mains angles

End of Register Notes — UPSC Agent / Copilot CLI